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New laws spark legal battle in the United States over art looted by the Nazis

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Los Angeles— Jewish heirs of Holocaust victims and their representatives have filed two lawsuits in California to assert their claims for artwork looted by the Nazis that still hangs on the walls of prominent museums in Los Angeles and Auschwitz. These lawsuits are the first submitted following the recent enactment of laws by California and Congress that strengthen claims made in the United States regarding artworks forcibly taken from Jewish families during World War II. One of the lawsuits was filed on Monday in the Los Angeles Superior Court by the Jewish Federation of Greater Los Angeles and its board president, Daniel Gryczman, against the Norton Simon Museum in Pasadena, seeking the return of "Adam and Eve." This case involves two masterful life-sized oil paintings on wood created by Lucas Cranach the Elder in 1530. The other lawsuit was filed on the same day in a federal court in Los Angeles by the daughters of the late Dinah Gottliebova Babbitt, a Holocaust survivor and animator based in California who was detained in Auschwitz. This claim demands the return of watercolors that the artist was forced to paint for Josef Mengele, a Nazi doctor known as the "angel of death." Spokespeople for both museums assert that these institutions are the legal owners of the artworks and intend to continue displaying them to the public. The lawsuits do not specify the monetary value of the paintings. ### Artwork Pits Jewish Families Against Museums The issue of art looted by the Nazis is an emotional topic, laden with legal and ethical implications, pitting Jewish families who have endured intergenerational trauma against museums that, in their view, aim to preserve a painful yet significant chapter of history. Between 1933 and 1945, the Nazi regime orchestrated the largest art theft in world history, seizing more than 600,000 artworks across Europe from Jewish families, collectors, and museums. Decades later, many of these masterpieces remain in prominent museums worldwide, complicating the push for their recovery beyond a simple ownership dispute. Rabbi Noah Farkas is the president and CEO of the Jewish Federation of Los Angeles, the organization to which Marei von Saher, the sole heir of the Dutch Jewish art dealer Jacques Goudstikker, has assigned her rights. The paintings were confiscated from Goudstikker's collection by Hermann Göring, second-in-command to Adolf Hitler, and changed hands multiple times before being sold in the 1960s to the Pasadena Museum of Modern Art, which was renamed the Norton Simon Museum in honor of its benefactor. Farkas stated that the federation plans to dedicate the majority of net proceeds from the sale of the recovered artworks to assist the approximately 2,500 Holocaust survivors living in the Los Angeles area who urgently need support. “These are European masterpieces of incredible beauty, stolen from a Jewish family to enrich the Nazi party and finance the machinery of war and death against the people,” he said. “It is an honor for us to take on this role on behalf of the community and dedicate the majority of the proceeds to helping these elderly survivors live their final years with dignity, comfort, and peace—something that was denied to their families during the Holocaust.” Marei von Saher expressed gratitude to the Jewish organization for taking up her family's cause in a statement. “This initiative represents an important step toward justice for Holocaust survivors and victims of Nazi atrocities,” she noted. ### New Legislation Breathes New Life into Lawsuits Jesse Gabriel, a Democratic Assemblyman from Woodland Hills, California, drafted Assembly Bill 2867, signed by Governor Gavin Newsom in September 2024, which mandates the application of state legislation in lawsuits filed by California residents or their heirs to recover artworks confiscated during the Holocaust or other acts of persecution. Gabriel, who co-chairs the California Legislative Jewish Caucus, introduced the law in response to a federal court ruling that allowed the state-owned Thyssen-Bornemisza National Museum in Madrid to retain an impressionist masterpiece by Camille Pissarro valued at several million dollars. The Nazis confiscated that painting from the Cassirer family in 1939. This case, which has prompted the new law, is expected to be tried in a federal court in California next month. Gabriel asserted that it is time for museums to "seriously consider whether they want to be on the right side of history." ### Museums Seek to Preserve Paintings for Posterity The Norton Simon Museum issued a statement indicating that a federal court unanimously ruled in 2018 that the museum held valid title to the paintings. In May 2019, the U.S. Supreme Court declined to intervene in the case, leaving the lower court rulings intact. They noted that the Cranach paintings, which originally belonged to the Stroganoff family, were put up for sale in 1931 by the Soviet Union in an illicit auction held in Berlin, where they were acquired by Goudstikker. After a complicated journey, the paintings were sold to the museum by a descendant of the Stroganoff family. Subsequently, the museum restored

and preserved the artworks. “For almost 50 years, they have been exhibited at the Norton Simon Museum and will continue to be made available to the public for many years,” the statement read. Pawel Sawicki, a spokesperson for the Auschwitz Memorial, stated that the watercolors of Romani victims that Mengele forced Gottliebova Babbitt to paint to document his horrific experiments and racial investigations “must remain at the Memorial” to bear witness to this man’s crimes. He pointed out that these paintings should not be inaccurately labeled as "Nazi-looted art," as Gottliebova Babbitt painted them against her will as a prisoner, and therefore, she was not the owner of the watercolors. While he understands the feelings of the family, Sawicki emphasized that the portraits of Romani and Sinti victims are among the few remaining documents of Mengele's criminal experiments and should be treated as unique documents related to the history of the Auschwitz concentration camp. “We fully respect the rights of those who created some of the documents we have here, and we consider that any loss from the Memorial's collections would represent irreparable harm,” he asserted. “... The loss, even of the smallest piece of documentation, is an irreparable loss and a stain on the memory of the victims of Auschwitz.” ### Advocates Hope Cases Will Be Evaluated on Their Own Merits Joel Greenberg, founder of Art Ashes, a nonprofit organization based in the Philadelphia area that helps Jewish families locate and recover art looted by the Nazis, commented that, in addition to the California law, President Donald Trump signed an update to the Holocaust Expropriated Art Recovery Act of 2025. This new law permanently removed the statute of limitations, allowing Holocaust survivors and their heirs to indefinitely claim the recovery of these artworks. Greenberg explained that the new federal law granted families the right to reclaim their artworks within six years from when they gain knowledge of who possesses them. “These new laws mean that technical defenses will no longer prevail in court,” he said. “Each case will be judged on its own merits.” He added that the new legislation also ensures that these Jewish families are heard in court and have a fair process to determine ownership of the stolen artworks. “It will ensure that stories about what happened to European Jewry are not lost or forgotten,” he asserted. “The artworks can still be returned to their rightful owners.”

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